



Questionnaire: Heidelberg Materials Australia - construction materials business of MAAS

MN-50009

Deadline to respond: 5 June 2026

The Australian Competition and Consumer Commission (**ACCC**) is currently assessing Heidelberg Materials Australia Holdings Pty Ltd's (**HMAH**) proposed acquisition of 100% of the share capital of Regional Group Australia Pty Limited, Macquarie Geotechnical Pty Limited and Machinery Sales Pty Limited, being wholly owned subsidiaries of Maas Group Holdings Limited (**MGH**), which together comprise MGH's construction materials business (**MAAS**) (the **Acquisition**).

The ACCC is assessing the impact of the Acquisition on competition and is seeking your views. The ACCC invites you to provide submissions or information in response to the questions below by **5 June 2025** via email to mergers@accc.gov.au with the title *Submission re: Heidelberg Materials Australia - construction materials business of MAAS*. The ACCC must complete its assessment within strict statutory timelines which also impacts the time available for consultation.

If you would prefer to speak to a member of the ACCC case team, please email mergers@accc.gov.au with the title *Request for call re: Heidelberg Materials Australia - construction materials business of MAAS*. Someone from the case team will contact you to find a suitable time for a call.

Please note that:

- This request is made in accordance with section 51ABZZD(2)(a) and (c) of the *Competition and Consumer Act 2010* (Cth) (the **Act**). This means that while the ACCC may take into account submissions or information received after the due date, it is not required to do so.
- In responding to the questions below or when providing a submission, please highlight and/or mark any confidential information and indicate why the information is confidential (as brief reasons in footnotes in your response or submission, or in a separate document such as the ACCC's [confidentiality claims template](#)). The standard terms on which the ACCC accepts confidential information are outlined at the end of this document.

The Acquisition

The ACCC is currently assessing HMAH's proposed acquisition of 100% of the shares in the entities that operate the construction materials business of MGH, which together are referred to as MAAS (the **Parties**).

The assets to be acquired include hard rock and natural sand quarries, ready-mix concrete (**RMX**) plants, materials testing and geotechnical services laboratories and machinery sales sites in Queensland, New South Wales (**NSW**) and Victoria, operating asphalt plants in NSW, the ACT and Queensland, an asphalt plant under construction in Melbourne and a heavy construction and demolition (**C&D**) waste disposal and recycling plant in Melbourne.

For further information about the ACCC's assessment of the Acquisition, see the ACCC's [Acquisitions Register](#).

The acquirer - HMA

HMAH, formerly known as Hanson Holdings Australia Pty Ltd, together with its related entities in Australia (collectively, **HMA**) supplies a range of construction materials, including RMX, quarry products (including coarse and fine aggregates), asphalt and sustainable / recycled construction materials. HMA also operates waste disposal and recycling facilities. HMA holds interests in the following joint ventures (**JV**) in Queensland, NSW and Victoria:

- Cement Australia - 50:50 JV with Holcim, which produces and sells cement.
- Western Suburbs Concrete Partnership - 50:50 JV with Total Concrete Solutions Pty Ltd, which primarily supplies concrete in Western Sydney.
- XL Premix Pty Ltd - 51% interest in a JV with XL Concrete (Vic) Pty Ltd (which has a 49% interest), which primarily supplies concrete in Melbourne.
- Metromix Pty Ltd - 50:50 JV with Holcim, which involves aggregate and concrete supply in Sydney.
- Lytton Sands JV - 50:50 JV with Boral for the extraction and processing of natural sand in Brisbane.

HMA's construction materials brands include Hymix, Alex Fraser Group, Elvin Group, Pioneer North Queensland, High Quality Concrete and Midway Concrete.

The target - MAAS

MGH is an ASX-listed diversified industrial group. The MAAS construction materials business operates RMX plants, hard rock and natural sand quarries, an asphalt business, a recycling centre, and also provides materials testing and geotechnical services, and machinery sales and earthmoving services.

MAAS's construction materials brands include Austek Roads, Macquarie Geotech, Regional Group Australia, Cleary Bros, Nationwide Machinery Sales & Hire, PWE Quarry Services, Amcor, Cardinia Environmental Recycling, Aerolite Quarries, Economix, Dandy Premix and Casacir.

Overlap between the Parties

The Parties overlap in the supply of the following products in the following regions:

- **RMX** in Greater Melbourne and Geelong, Central Queensland (Rockhampton and Blackwater), NSW (Tamworth, Dubbo, Illawarra and Shoalhaven),

- **coarse aggregates** in Greater Melbourne, Central Queensland (Biloela), South East Queensland (to the extent that MAAS is the landholder of the Yatala quarry, which is operated by Crushing Dynamics under a lease), NSW (Dubbo, Illawarra and Shoalhaven),
- **fine aggregates** in Greater Melbourne,
- **asphalt** in Greater Melbourne (in the future once MAAS's plant in Pakenham becomes operational), South East Queensland, and
- **heavy C&D waste disposal and recycling services** in Greater Melbourne.

The Parties' coarse aggregates and fine aggregates products are upstream inputs into RMX and asphalt, and can also be used for other end uses such as road base, ballast, fill material, drainage and landscaping.

HMA's remedy offer

To address any potential ACCC concerns arising from the Acquisition in:

- the supply of RMX in Blackwater, and
- the supply of coarse aggregates in Central Queensland,

HMA proposes to divest the following to Corbet's Group:

- the HMA Blackwater RMX plant (located at Railway Street, Blackwater QLD 4717), and
- the HMA Yalkara hard rock quarry (located at Orange Creek Road, Orange Creek QLD 4715),

(together, the **proposed divestitures**).

Corbet's Group is a diversified, privately-owned transport, plant and equipment services business headquartered in Gympie, Queensland.

Alternatively, HMA will divest the HMA Blackwater RMX plant and HMA Yalkara hard rock quarry to another purchaser approved by the ACCC.

For further information about HMA's remedy offer, including the assets proposed to be divested, see the ACCC's [Acquisitions Register](#).

Questions

In this questionnaire:

Asphalt means a mixture of coarse and fine aggregates bound together by bitumen.

Coarse aggregates means crushed rock with a particle size over 5mm.

Fine aggregates means sand with a maximum particle size of 5mm.

RMX means ready-mix concrete.

Waste disposal and recycling facilities mean heavy construction and demolition waste recycling facilities.

Questions for all respondents

1. Provide a brief description of your business or organisation, including any quarries (fine or coarse aggregates), RMX plants, asphalt plants or waste disposal and recycling facilities you operate, the type of products you supply and/or purchase, the area(s) you service, and any commercial relationships you have with HMA or MAAS.

Questions for suppliers and customers of RMX, coarse aggregates and fine aggregates

Note: For questions 2-4 the Parties' areas of overlap include the following:

- **RMX** in Greater Melbourne and Geelong, Central Queensland (Rockhampton and Blackwater), NSW (Tamworth, Dubbo, Illawarra and Shoalhaven).
 - **Coarse aggregates** in Greater Melbourne, Central Queensland (Biloela), South East Queensland, NSW (Dubbo, Illawarra and Shoalhaven).
 - **Fine aggregates** in Greater Melbourne.
2. How closely do the Parties currently compete in the supply of RMX, coarse aggregates and/or fine aggregates in each of the regions they overlap in which are relevant to your business, taking into account factors such as:
 - a. Geographic location of the relevant plants and/or quarries.
 - b. Quality and characteristics of the products supplied, such as grades of RMX, coarse aggregates and/or fine aggregates.
 - c. Other factors such as price, service quality, reliability and/or capacity.

RMX

Coarse/fine aggregates

3. Identify and describe the main competitors to the Parties in the supply of RMX, coarse aggregates and/or fine aggregates in each of the regions they overlap in which are relevant to your business. As part of your response, explain which competitors are the strongest and which are less strong, including reasons why with reference to the factors identified in question 2 above.

RMX

Coarse/fine aggregates

4. How easy or difficult is it for a customer of HMA or MAAS to switch to a competing supplier of RMX, coarse aggregates and/or fine aggregates in the areas the Parties overlap in which are relevant to your business. Please explain any supplier capacity or availability constraints, costs (including transport costs), time delays and/or technical barriers associated with making such a switch.

RMX

Coarse/fine aggregates

Questions for suppliers of RMX, asphalt, coarse aggregates and fine aggregates

5. **If you purchase coarse aggregates or fine aggregates from either of the Parties:** Are there alternative suppliers of these products that could meet your requirements if you could no longer purchase from the Parties? Please identify the location(s) you acquire these products in, and explain the reasons why or why not.

6. **If you supply coarse aggregates or fine aggregates to either of the Parties:** Are there alternative customers you could supply to if you were no longer able to sell to the Parties? Please identify the location(s) you supply these products in, and explain the reasons why or why not.

Note: For questions 7 & 8, the Parties' areas of overlap include the following:

- **RMX** in Greater Melbourne and Geelong, Central Queensland (Rockhampton and Blackwater), NSW (Tamworth, Dubbo, Illawarra and Shoalhaven).
- **Coarse aggregates** in Greater Melbourne, Central Queensland (Biloela), South East Queensland, NSW (Dubbo, Illawarra and Shoalhaven).
- **Fine aggregates** in Greater Melbourne.

7. Describe how prices for RMX, coarse aggregates and/or fine aggregates are typically determined in each of the regions the Parties overlap in which are relevant to your business. In your response, please address:

- a. How prices are offered to customers (e.g. list prices, tender prices, formula-based prices).
- b. What factors influence the prices offered to customers (e.g. input costs, transport costs, type of customer, presence of competitors).
- c. At what level of your business pricing decisions are typically made, including the extent of pricing variation across locations/regions.

RMX

Coarse/fine aggregates

8. Describe barriers a business may face in commencing or increasing supply of RMX, coarse aggregates and/or fine aggregates in each of the regions the Parties overlap in which are relevant to your business (for example, investment costs, regulatory barriers and/or access to suitable sites).

RMX

Coarse/fine aggregates

Questions for suppliers and customers of asphalt and/or waste disposal and recycling services

9. The Parties also overlap in the supply of asphalt in Greater Melbourne and South East Queensland, and in the supply of waste disposal and recycling services in Greater Melbourne. Explain how closely the Parties compete in the supply of each product and/or service and identify and describe their main competitors.

Asphalt

Waste disposal and recycling

Questions for all respondents

10. Outline any concerns regarding the impact of the Acquisition on competition.

11. Provide any additional information or comments that you consider relevant to the ACCC's assessment of the Acquisition.

Questions about the proposed divestitures

12. Describe the extent to which HMA's proposed divestitures would address any concerns you have in relation to the Acquisition.

13. Provide your views whether HMA's proposed divestitures are likely to attract a suitable purchaser, and the qualities a suitable purchaser should possess.

14. Provide your views on whether Corbet's Group is a suitable purchaser of the proposed divestitures.

15. Provide your views on any factors that may impact effective implementation of the proposed divestitures e.g., any third-party consents (including regulatory) required.

16. Provide any additional information or comments you consider relevant to the ACCC's consideration of the proposed divestitures.

Confidentiality of responses

During the ACCC's assessment of a notified acquisition, the ACCC may receive information that is properly regarded as being confidential, and which is provided to the ACCC in confidence. The ACCC is committed to treating this information responsibly and in accordance with the law. The ACCC understands the importance of confidentiality to parties involved in a notified acquisition, as well as to third parties that provide information to the ACCC.

The standard terms on which the ACCC accepts confidential information are:

- there is no restriction on the internal use, including future use, that the ACCC may make of the confidential information consistent with the ACCC's statutory functions
- confidential information may be disclosed to the ACCC's external advisors and consultants on condition that each such advisor or consultant will be informed of the obligation to treat the information as confidential, and
- the ACCC may disclose the confidential information to other third parties if compelled by law or in accordance with section 155AAA of the Act. This includes disclosures made in the performance of official duties or functions, which include transparency requirements which are part of the merger control regime.

For further information on confidentiality, see the ACCC's [interim merger process guidelines](#).